

23STCV16837 23STCV16837

County: los-angeles

Division: Civil Law and Motion

Department: 517

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Case Number: 23STCV16837 Hearing Date: September 23, 2026 Dept: 517

The Court is denying Defendant's motion under Code of Civil Procedure section 128.7 for an order imposing monetary sanctions against Plaintiff's counsel and terminating sanctions in the form of a dismissal of Plaintiff's action for age discrimination, Case No. 26STCV07242 ("the Second Action"), which has been consolidated with this action, Case No. 23STCV16837 ("the First Action"). In the Court's view, the filing of the Second Action was not done for the impermissible purpose of evading the Court's order in the First Action denying Plaintiff's motion for leave to amend her Complaint to add claims for age discrimination. Thus, sanctions based on an asserted evasion of an order are unwarranted. Nor does the Court believe that the Second Action is so meritless that sanctions for having brought it are warranted. Defendant is free to test the sufficiency of the allegations supporting the age discrimination claim in the Second Action through a demurrer or motion for summary adjudication. The Court takes no position here on that question. The Court disagrees with Plaintiff that it is Defendant's counsel who should be sanctioned for having filed the section 128.7 motion in the first place. Defendant's counsel had a valid basis for filing the motion.

The Court did not have to consider the parties' respective objections to the other side's evidence in order to resolve the Defendant's motion. The objections were immaterial.